



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 750/12

BEFORE:

K. Cooper : Vice-Chair
B. Davis : Member Representative of Employers
K. Hoskin : Member Representative of Workers

HEARING:

April 12, 2012 at London
Oral

DATE OF DECISION:

September 11, 2012

NEUTRAL CITATION:

2012 ONWSIAT 2008

DECISION UNDER APPEAL:

WSIB Appeals Resolution Officer (ARO) dated
November 11, 2010

APPEARANCES:

For the worker:

P. Shrum, Paralegal

For the employer:

N/A

Interpreter:

N/A

REASONS

(i) Introduction to the appeal proceedings

- [1] The worker appeals a decision of the ARO, which concluded that the evidence did not establish that the worker's left knee problems arose out of the work injury or that the right knee problems were aggravated by the work injury. The ARO rendered a decision based upon the written record without an oral hearing.

(ii) Issues

- [2] The issue under appeal is whether the worker has ongoing entitlement from December 28, 2007, for a bilateral knee condition as a result of her compensable accident.

(iii) Background

- [3] The following are the basic facts.

- [4] The now 54-year-old worker started as a housekeeper with the accident employer in September 2002. She was injured on December 25, 2007 when the worker slipped on ice in the parking lot while returning to work. The worker claimed she fell on the left knee and twisted the right knee. The worker returned to her regular duties.

- [5] Initial entitlement in this claim was established when the employer submitted its Form 7 (employer's first report) on January 3, 2008. The worker completed her Form 6 (worker's first report) on January 18, 2008 indicating that she had slipped on ice in the parking lot. The form indicated that both knees were immediately sore, and that she had placed ice on them for 20 minutes following the slip and fall. The worker attended a clinic on December 28, 2007, but did not lose any time or pay.

- [6] The employer completed another Form 7 on June 10, 2008. At this time the worker was seeking loss of earnings benefits in relation to a leave for surgery on her knees. It indicated that the worker had been waiting to see a specialist with regards to a pre-existing condition in her right knee.

- [7] The worker claimed ongoing entitlement for her left knee in June 2008. Medical documentation was requested at the time to support this entitlement, but none was immediately forthcoming.

- [8] Approximately one year later medical documentation was submitted, after which the Claims Adjudicator (CA) sought an opinion from the Board Medical Consultant. This opinion did not support that the work injury further damaged the right knee, or that the left knee problems arose out of the work injury. The CA relied on this opinion and denied the claim.

- [9] The worker appealed, leading to the ARO decision under appeal herein.

(a) Medical reports

- [10] A Functional Abilities Form (FAF) dated December 28, 2007 indicated that the worker was capable of returning to work with no restrictions, and recommended regular full time hours.

[11] On February 4, 2008 imaging of the left knee was performed. It found a mild narrowing at the medial joint compartment in keeping with a mild degree of osteoarthritic disease. It detected no fractures.

[12] On June 5, 2008 further imaging was performed, this time on both knees. It found “fairly symmetrical mild degenerative narrowing of the medial joint compartment of each knee.” It made no other significant findings.

[13] A report dated May 5, 2008 from the worker’s family physician Dr. Wong, noted the following:

The patient never had any problems with either knee until two years ago when she tripped over a baby gate and fell and twisted her right knee. This swelled dramatically, stiffened and had medial pain. The acute symptoms have subsided, but she still has some persisting medial pain, weakness, but no true giving way and no locking.

The left knee was injured when she fell in December 2007, at work. She twisted the knee and had medial pain, swelling and stiffness. Again, the acute symptoms have subsided, but not resolved completely.

...

The patient has had no complications from previous...knee arthroscopies...

...

A plain x-ray of the left knee, taken November 27, 2007 is normal. Repeat x-ray done at Dr. Bennet’s on February 4, 2008 shows some minor medial compartment narrowing.

[14] A post-operative report dated June 12, 2008 found the following:

Articular cartilage wear medial and patella-femoral compartments left knee.

Articular cartilage wear lateral and patella-femoral compartments and posterior cruciate ligament tear right knee.

[15] A report from the Board Medical Consultant, dated December 2, 2009, found the following:

...

The June 2008 scope/debridement of the left knee is not likely related to the December 2007 fall: There was a significant gap between DOA and follow up but, in addition, the arthroscopy describes significant degree of wear, without evidence of acute lesion.

The right knee had been injured prior to the DOA, and, the examination reports also do not show correlation between the condition of that knee and the December 2007 fall.

(iv) Testimony

[16] The worker testified that on the date of accident she had been having lunch in her truck in the parking lot. As she returned to work she slipped on ice and landed on her left knee first, with her right leg out from her side. She stated her left wrist had a scrape. The worker testified that her husband had helped her to her feet.

[17] The worker stated that she reported the fall to the company nurse and remained at work that day performing her regular duties, which that day was putting away laundry with another person.

[18] The worker confirmed that she had a pre-existing problem with her right knee, noting that it would swell and ache. She stated that she had no pre-existing problems with her left knee.

[19] The worker testified that she went home that day and that it was the next day, December 26, 2007, that she attended a walk-in clinic as that was the beginning of a 10-day scheduled vacation. She testified that following this break she returned to her regular duties and lost no time from work.

[20] She stated that her family doctor was on vacation and saw him on January 3, 2008 with both knees sore.

(v) Submissions

[21] Mr. Shrum, the worker's representative, submitted that there was no evidence that the worker had suffered any problems with her left knee prior to the December 2007 accident, and that the medical evidence on file supports that the left knee only became problematic afterwards.

[22] He also submitted that the surgical report indicated a significant tear in her right knee which may have been caused or aggravated by the December 2007 fall.

[23] He submitted that the worker was entitled to loss of earnings benefits for the dates of her surgery and subsequent recovery, and for ongoing entitlement for both knees.

(vi) Law and policy

[24] Since the worker was injured in 2007, the *Workplace Safety and Insurance Act, 1997* (the "WSIA") is applicable to this appeal. All statutory references in this decision are to the WSIA, as amended, unless otherwise stated.

[25] Pursuant to section 126 of the WSIA, the Board stated that the following policy packages, Revision #8, would apply to the subject matter of this appeal:

- #1 – Initial Entitlement;
- #36 – LOE Benefits;
- #37 – Reviewing LOE – benefits as of July 1, 2007;
- #107 – Aggravation Basis/SIEF; and
- #300 – Decision Making.

[26] We have considered these policies as necessary in deciding the issues in this appeal, in particular:

- *Operational Policy Manual* ("OPM") Document #11-01-01, "Adjudicative Process."

(vii) Analysis

[27] In order to establish ongoing entitlement in this case it would require evidence that the work-related injury in 2007 was a significant contributing factor in the ongoing bilateral knee condition.

[28] This case has very little medical evidence that is contemporaneous with the worker's fall, and no direct and objective supporting medical opinion prior to the worker's eventual bilateral knee surgery in June 2008 that relates the ongoing knee condition to the work accident.

[29] The worker claims that she fell in the parking lot on December 25, 2007, hurting both knees. She returned to work immediately and to her regularly scheduled duties. She stated in her testimony that she visited a walk-in clinic the next day, although the FAF on file indicates that she was seen on December 28th, not the 26th. That FAF also notes that the worker was fit to return to regular duties as of that date, noted no restrictions, nor any swelling.

[30] The worker testified that she saw her family doctor on January 3, 2008, but there is no evidence of this on file. The first report on file with physical findings is Dr. Wong's May 2008 report, which is six months post date of accident.

[31] Mr. Shrum submitted that the x-ray in February 2008, when compared to one taken in November 2007, is evidence that the worker's left knee was damaged by the December 2007 fall. We note, however, Mr. Shrum has not provided any significant evidence or medical opinion that the result of the x-ray in 2008 is directly related to the 2007 work accident. Further, we note that this opinion is not shared by the Board's medical consultant, and that the post-operative report noted that the worker's left knee was largely normal, excepting for normal wear and tear.

[32] The Board Medical Consultant opined:

The June 2008 scope/debridement of the left knee is not likely related to the December 2007 fall: There was a significant gap between DOA and follow up but, in addition, the arthroscopy describes significant degree of wear, without evidence of acute lesion.

The right knee had been injured prior to the DOA, and, the examination reports also do not show correlation between the condition of that knee and the December 2007 fall.

[33] We also note that there is no dispute that the worker had a pre-existing injury to her right knee, which her family doctor noted was significant, and was the initial reason for her referral to a surgeon.

[34] In summary:

- There is no contemporaneous medical evidence on file to support that the worker's December 2007 accident caused a significant injury to either knee.
- The initial FAF form indicates that the worker was had no restrictions and was fit for regular duty at full-time hours.
- The worker returned to her regular duties, both the day of the accident and after returning from her vacation.
- The worker had a significant pre-existing non-compensable injury to her right knee.
- The surgical report indicates wear and tear of the left knee, but no acute findings.
- The Board Medical Consultant opined that the December 2007 fall was not the cause of her bilateral knee condition.

[35] Given the foregoing, we are not persuaded that the worker's December 2007 fall caused or contributed to the worker's ongoing bilateral knee condition. As such, the worker's claim is denied.

DISPOSITION

[36] The appeal is denied.

DATED: September 11, 2012

SIGNED: K. Cooper, B. Davis, K. Hoskin